



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

January 8, 2020

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 201806458 regarding Police Officer Merita Hoxha, Tax No. [REDACTED] (DADS No. 2019-20244) and Sergeant Victor Velez, Tax No. [REDACTED] (DADS No. 2019-20245)

Dear Mr. Darche:

After reviewing the facts and circumstances in this case, the Police Commissioner has determined that Police Officer Hoxha will receive Training from the Police Academy in Patrol Guide Procedure 212-11 (Investigative Encounters/Question, Frisk, Search) and Sergeant Velez will receive Training from the Police Academy in Patrol Guide Procedure 212-11 (Investigative Encounters/Question). The Respondents justifiably stopped the complainant for jaywalking. However, when they asked the complainant whether he possessed weapons or "anything he should not have" their questions were improper based on the nature of the stop. Further, the frisk and search were also improper since the complainant did not provide a valid consent but rather merely submitted to police authority due to the officers surrounding him. Although the Respondent's actions were incorrect they were made in good faith and they would benefit from Training in order to be guided in future actions.

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

Cecil Wade
Deputy Chief
Commanding Officer
Police Commissioner's Office

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